

23STCV13959 23STCV13959

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: 23STCV13959 Hearing Date: August 25, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

MICHELLE PESCE,

Plaintiff,

vs.

1745 SAN YSIDRO DRIVE,

LLC, et al.,

Defendants.

Case No.:

23STCV13959

Hearing Date:

August 25, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE]

ORDER RE:

PLAINTIFF

MICHELLE PESCE'S MOTION FOR ORDER CHARGING MEMBER'S INTEREST IN 2535 HUTTON

DRIVE, LLC

Background

On June 15, 2023, Plaintiff

Michelle Pesce ("Pesce") filed this action against Defendants 1745 San Ysidro

Drive, LLC ("1745 San Ysidro") and Christian Toxboe ("Toxboe") (jointly, "Defendants"),

alleging two causes of action for (1) breach of contract and (2) action on

guaranty.

On March 11, 2024, this

Court entered a default judgment in favor of Pesce and against Defendants in

the total amount of \$132,202.23.

Pesce now moves for an order "(1) charging the interest of Judgment

Debtor, CHRISTIAN TOXBOE, in a limited liability company known as 2535 Hutton

Drive, LLC with payment of the unpaid balance of the judgment entered in this

action, which currently totals \$159,186.07, and (2) directing the LLC and all

members thereof to pay any money or property due or to become due to the

Judgment Debtor, CHRISTIAN TOXBOE, directly to MICHELLE PESCE, through her counsel of record, until the amount remaining due on the judgment, plus all accrued interest thereon, is paid in full.” (Notice of Mot., 1:28-2:6.) No opposition was filed.

Legal Standard

Code of Civil Procedure section 708.310 provides that “[i]f a money judgment is rendered against a partner or member but not against the partnership or limited liability company, the judgment debtor’s interest in the partnership or limited liability company may be applied toward the satisfaction of the judgment by an order charging the judgment debtor’s interest pursuant to Section 15907.03, 16504, or 17705.03 of the Corporations Code.” Corporations Code section 17705.03, subdivision (a), states that “[o]n application by a judgment creditor of a member or transferee, a court may enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment. A charging order constitutes a lien on a judgment debtor’s transferable interest and requires the limited liability company to pay over to the person to which the charging order was issued any distribution that would otherwise be paid to the judgment debtor.”

“As used in Corporations Code

section 17705.03, a ‘transferable interest’ is ‘the right, as originally

associated with a person's capacity as a member, to receive distributions

from a limited liability company in accordance with the operating agreement,

whether or not the person remains a member or continues to own any part of the

right.' (Corp. Code, § 17701.02, subd. (aa).) A

'distribution' is a 'transfer of money or other property from a limited

liability company to another person on account of a transferrable interest.' (Id., subd. (f).)" ((Rice

v. Downs (2021) 73 Cal.App.5th 213.)

Pursuant to Code of Civil Procedure

section 708.320, subdivision (a), "[a] lien on a judgment debtor's interest

in a partnership or limited liability company is created by service of a notice

of motion for a charging order on the judgment debtor and on ... (2) all members

or the limited liability company."

Discussion

In support of the instant motion, Pesce provides a

declaration. Pesce explains that "[i]n my

previous business dealings with CHRISTIAN TOXBOE I loaned him Money for the

purpose of constructing a home at 1745 SAN YSIDRO DRIVE, Beverly Hills,

California. The project was undertaken by a company known as 1745 SAN YSIDRO DRIVE, LLC, when

that company was formed in April 30 2019. When I loaned 1745 SAN YSIDRO DRIVE,

LLC. the money which formed the basis for this case, CHRISTAIN TOXBOE indicated

that the funds were necessary to complete that real property development project. He guaranteed the loan... Judgment was entered in this case on March 11, 2024.” (Pesce Decl., ¶ 2.) Pesce attaches exhibits demonstrating that Toxboe was the original agent for process for 1745 San Ysidro, that Toxboe was listed as a manager or member of 1745 San Ysidro on March 12, 2024, the day after judgment was entered, and that the LLC was terminated on December 12, 2024. (Pesce Decl., ¶ 2, Exs. A-C.)

Pesce next explains that she

“learned through discussions with persons in the Beverly Hills, California real estate community that 2535 HUTTON DRIVE, L.L.C. is the developer of a property located at 2535 HUTTON DRIVE, Beverly Hills, California 90210,” and the California Secretary of State’s records indicate that Toxboe is a manager or member. (Pesce Decl., ¶ 3, Ex. D.) Pesce attests that “[t]he property located at 2535 HUTTON DRIVE, is currently listed, publicly, for sale for \$18,488,000.

I believe that 2535 HUTTON DRIVE, L.L.C. is the developer of that property and that 2535 HUTTON DRIVE, L.L.C. does or will soon hold valuable assets and that TOXBOE, a member, holds a transferable interest in 2535 HUTTON DRIVE, L.L.C. and its assets from which I may wholly or partially satisfy my judgment.”

(Pesce Decl., ¶ 4, Ex. E.) Pesce’s exhibit in support supports her declaration that the property is listed for over eighteen million.

Pesce's motion and declaration in

support demonstrate that Toxboe has an interest in 2535 Hutton Drive as a

manager or member, and that 1745 San Ysidro was dissolved. Additionally, Pesce

complied with the service requirements because her proof of service

demonstrates that she served Toxboe and 2523 Hutton Drive with the instant

motion. Accordingly, on this basis, Pesce supported her motion to charge the

LLC's interests. Pesce's notice of motion requests \$159,186.07

for the outstanding amount. The original judgment entered against Defendants

totaled \$132,202.23. Pesce's declaration in support states that "[n]either 1745 SAN YSIDRO DRIVE, LLC,

nor CHRISTIAN TOXBOE paid any money owed on the loan." (Pesce Decl., ¶ 2.) "Through

a charging order, the court may charge the debtor's interest in the partnership

with payment of the unsatisfied judgment, plus interest." ((Crocker Nat. Bank v. Perroton (1989) 208 Cal.App.3d 1, 6.)
Although

Pesce does not provide a calculation for the requested judgment figure, the

Court finds that the requested amount correctly calculates accrued

post-judgment interest. Accordingly, and in light of the lack of opposition

from Toxboe or non-party 2535 Hutton Drive, the Court grants the motion to

charge Toxboe's interest in 2535 Hutton Drive, LLC.

Conclusion

Based on the foregoing, Pesce's motion to charge member's interest is GRANTED.

The Court orders the charge of Judgment Debtor Toxboe's interest in 2535 Hutton

Drive, LLC, with payment of the unpaid balance of the judgment entered in this action, which currently totals \$159,186.07. 2535 Hutton Drive, LLC and all members thereof are directed to pay any money or property due or to become due to Toxboe, directly to Pesce, through her counsel of record, until the amount remaining due on the judgment, plus all accrued interest thereon, is paid in full.

Pesce is ordered to give notice of this Order.

DATED: August 25, 2026

Hon. Teresa A.

Beaudet

Judge, Los

Angeles Superior Court